

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aiyanna Milligan	Team: Squad #06	CCRB Case #: 201708379	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/11/2017 3:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/11/2019	Precinct: 102		
Date/Time CV Reported Wed, 10/11/2017 11:53 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 10/11/2017 11:53 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Harris	00768	943353	102 PCT
2. POM Giancarlo Pineda	23274	962694	102 PCT
3. SGT Jason Rozenfeld	01948	942481	102 PCT
4. POM George Ruf	14364	935659	102 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Harris	Abuse: Police Officer Christopher Harris entered § 87(2)(b) in Queens.	A . Substantiated
B . POM Giancarlo Pineda	Abuse: Police Officer Giancarlo Pineda entered § 87(2)(b) in Queens.	B . Substantiated
C . SGT Jason Rozenfeld	Abuse: Sergeant Jason Rozenfeld threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . SGT Jason Rozenfeld	Abuse: Sergeant Jason Rozenfeld searched § 87(2)(b) in Queens.	D . Exonerated
E . SGT Jason Rozenfeld	Abuse: Sergeant Jason Rozenfeld refused to provide his shield number to § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On October 11, 2017, § 87(2)(b) filed this complaint with the CCRB via the on-line website. Earlier that same day, at approximately 3:45 PM, PO Christopher Harris and PO Giancarlo Pineda, from the 102nd Precinct, responded to § 87(2)(b), a two-family home, in Queens to conduct a wellness check regarding § 87(2)(b) the owner of the house, who resides on the 1st floor.

PO Harris and PO Pineda encountered § 87(2)(b) § 87(2)(b)'s son and a co-occupant who resides in an apartment on the 2nd floor, outside of the house as he returned from work. § 87(2)(b) allowed PO Harris and PO Pineda into the house, but left them in the hallway in front of the entrance to § 87(2)(b)'s apartment. While PO Harris and PO Pineda waited for § 87(2)(b) to come to the door, they each entered the residence by placing their foot in the apartment entrance's doorway. PO Harris also put his head inside and peered into the residence. PO Pineda also, breached the doorway and stood with, at a minimum, his head, upper left arm, and torso beyond the apartment's threshold. (**Allegations A and B: Abuse of Authority, Substantiated**).

PO Harris and PO Pineda interviewed § 87(2)(b) and subsequently contacted their supervisor, Sgt. Jason Rozenfeld. Sgt. Rozenfeld arrived on scene with PO George Ruf, as did a neighbor, § 87(2)(b). § 87(2)(b) asked whether § 87(2)(b) could return to her bed, at which time Sgt. Rozenfeld allegedly asked § 87(2)(b) whether he was hiding something, unbuttoned and lifted the strap of his gun's holster, hovering his hand over the gun, and then reached towards his pepper spray (**Allegation C: Abuse of Authority, Unsubstantiated**). § 87(2)(b) ultimately permitted the officers to enter her apartment and assess its condition, at which time Sgt. Rozenfeld supervised the search of (**Allegation D: Abuse of Authority, Exonerated**).

As the officers exited the residence, § 87(2)(b) asked Sgt. Rozenfeld for his shield number. Sgt. Rozenfeld did not verbally reply, but pushed his chest out to allow § 87(2)(b) to copy it (**Allegation E: Abuse of Authority, Unsubstantiated**). § 87(2)(b) was neither summonsed nor arrested. § 87(2)(b) was not removed to the hospital. § 87(4-b), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b)

Video footage of the incident was obtained from the Body Worn Cameras of PO Harris, PO Pineda, and PO Ruf and are located in IAs 128 through 132 (BR 01, BR 02, BR 03, BR 04 and BR 05).

Findings and Recommendations

Allegation A - Abuse of Authority: Police Officer Christopher Harris entered § 87(2)(b) § 87(2)(b) in Queens.

Allegation B - Abuse of Authority: Police Officer Giancarlo Pineda entered § 87(2)(b) § 87(2)(b) in Queens.

§ 87(2)(g)

§ 87(2)(b) testified that on October 11, 2017, at approximately 4:45 PM, he was approached outside of § 87(2)(b) § 87(2)(b) by PO Harris and PO Pineda. PO Harris stated that he wanted to meet § 87(2)(b) because § 87(2)(b) sent him to assess her and see her house. § 87(2)(b) asked the officers if he could verify whether § 87(2)(b) was willing or available to interact and the officers agreed. When § 87(2)(b) entered the house, PO Harris and PO Pineda followed closely behind him and entered the home as well. § 87(2)(b) neither

asked the officers to wait outside, nor invited them inside, but told the officers that they were trespassing on private property. When § 87(2)(b) reached the entrance to § 87(2)(b)'s apartment, he reiterated that he was going to check on his mother. PO Harris placed his foot in the doorway and looked into § 87(2)(b)'s apartment. When PO Harris stepped away from the door to place a phone call, PO Pineda took his place and also placed his foot in the doorway (BR 06).

Neither § 87(2)(b) nor § 87(2)(b) were present for the duration of time in which these allegations transpired.

Phone statements were obtained from § 87(2)(b) § 87(2)(b) § 87(2)(b), r, conducted a scheduled home visit at § 87(2)(b)'s residence on October 10, 2017. § 87(2)(b) expressed concern to her § 87(2)(b), because coupled with missed medical appointments, § 87(2)(b) brought § 87(2)(b) outside for the entirety of the visit. § 87(2)(b) According to § 87(2)(b) Shaw alleged that there seemed to be no heat/electricity in the house. § 87(2)(b) § 87(2)(b) contacted Adult Protective Services [APS], which recommended a wellness check. § 87(2)(b) § 87(2)(b) alerted her § 87(2)(b). When § 87(2)(b) spoke with their § 87(2)(b), they stated that the § 87(2)(b) notified the NYPD about the requested wellness. Neither § 87(2)(b) nor § 87(2)(b) or § 87(2)(b) § 87(2)(b) contacted 911 or spoke directly with anyone at the 102nd Precinct, and thus did not know what specific information was conveyed to the NYPD when the wellness check was requested. In addition, none of them followed up with APS or the 102nd Precinct about the outcome of the wellness check (BR 07 and BR 08).

PO Harris testified that he spoke with a male representative from § 87(2)(b) who informed PO Harris that § 87(2)(b) had missed hospital appointments, did not appear to be in good health the last time she had been seen, and asked that she be removed to the hospital. Upon encountering § 87(2)(b) PO Harris explained to him that § 87(2)(b) contacted the NYPD and he and PO Pineda had been sent to the location to check on § 87(2)(b) to make sure she was okay. When § 87(2)(b) opened the front door to the house, PO Harris and PO Pineda followed § 87(2)(b) inside the house beyond the front door and the storm door. § 87(2)(b) § 87(2)(b) did not invite the officers inside, but did not inform them that they were trespassing. PO Harris described § 87(2)(b) as “arrogant” and “standoffish,” but denied that he was concerned for his safety during the incident. As PO Harris waited for § 87(2)(b) to come to the door, he and PO Pineda remained in front of the doorway to her apartment. PO Harris denied placing his foot in the doorway, preventing the apartment door from closing, or observing PO Pineda take either action (BR 09).

§ 87(2)(g) PO Pineda acknowledged that both he and PO Harris used their respective hands and feet to prevent the door from closing because it did not have good hinges. PO Pineda reasoned that they placed their hands on the apartment's door and their feet in the doorway so that they could see/hear whether § 87(2)(b) needed assistance, to allow him to ask § 87(2)(b) whether he and PO Harris could enter the apartment if it was a problem for § 87(2)(b) to get up, and for safety; to be able to see what was occurring in the hallway that is right beyond the entrance. PO Pineda did not fear for his safety, but noted that he did not feel comfortable because § 87(2)(b)'s demeanor was “odd” for a case in which the officers were only present to check on § 87(2)(b)'s health (BR 10).

Neither Sgt. Rozenfeld nor PO Ruf were present for the duration of time in which these allegations transpired.

Video evidence depicts both PO Harris and PO Pineda beyond the apartment's threshold. Between 2:49 and 2:53, as well as between 17:31 and 17:37, of the file embedded in IA 131, PO Harris is seen pushing the door open and breaching the apartment's doorway to peer into the inner hall. As soon as § 87(2)(b) and § 87(2)(b) exit the hallway and are no longer in view, PO Harris leans beyond the threshold, and states, at 17:36, "I can't get in there at all." PO Pineda replies, "It's too far. I tried when I peaked in." Between 4:23 and 4:44 of the file embedded in IA 131, PO Pineda is seen taking PO Harris' place at the apartment's entrance and opening the door further (BR # and BR #). Between 7:10 and 7:27 of the file embedded in IA 130, PO Pineda is seen breaching the doorway and standing with, at a minimum, his head, upper left arm, and torso beyond the apartment's threshold (BR 03, BR 04, and BR 11).

The Fourth Amendment dictates that warrantless and nonconsensual entry into a home is unreasonable, Payton v. New York, 445 U.S. 573 (1980) (BR 12). In the absence of exigent circumstances, police are not permitted to cross the "threshold" of a home's doorway without a warrant, People v. Gonzales, 111 A.D.3d 147 (2013) (BR 13). Patrol Guide Procedure 212-72 defines exigent circumstances as "circumstances requiring action before authorization otherwise necessary under these guidelines can reasonably be obtained" (BR 14). Patrol Guide Procedure 207-25 established the manner in which members of service are to respond to reports of crime, including neglect, against clients of APS. If the health or safety of the victim does not appear to be in immediate danger, assigned officers are to respond to the scene, interview the victim, witnesses, and caseworker, and conduct a thorough field investigation (BR 15).

It is undisputed that PO Harris and PO Pineda responded to the incident location to evaluate the wellbeing of § 87(2)(b). It is also undisputed that neither PO Harris nor PO Pineda initially had a search warrant or § 87(2)(b)'s consent to enter her apartment. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations A and B** be closed as **Substantiated**.

Allegation C - Abuse of Authority: Sergeant Jason Rozenfeld threatened § 87(2)(b) with the use of force.

Allegation E - Abuse of Authority: Sergeant Jason Rozenfeld refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) testified that when he told Sgt. Rozenfeld that § 87(2)(b) wanted to return to her bed, Sgt. Rozenfeld allegedly questioned why, asked § 87(2)(b) whether he was hiding something, unbuttoned and lifted the strap of his gun's holster, hovering his hand over the gun, and then reached towards his pepper spray, which located on Sgt. Rozenfeld's left side,

opposite the holster. § 87(2)(b) was not looking at Sgt. Rozenfeld when he did this. After the officers exited § 87(2)(b)'s apartment, the officers began to leave. § 87(2)(b) asked Sgt. Rozenfeld for his shield number, at which time Sgt. Rozenfeld allegedly pushed his chest out and allowed § 87(2)(b) to see it instead of verbally replying (BR 06).

§ 87(2)(b) did not overhear any separate conversation between § 87(2)(b) and Sgt. Rozenfeld (BR 16). § 87(2)(b) did not overhear § 87(2)(b) ask any officers for their shield numbers (BR 17).

Sgt. Rozenfeld testified that he was unsure of how long PO Harris and PO Pineda were on scene for before he was called to the location § 87(2)(b) initially gave the officers a hard time," which Sgt. Rozenfeld described as § 87(2)(b) repeatedly questioning the officers' presence. § 87(2)(b) did not ask Sgt. Rozenfeld for his shield number, but Sgt. Rozenfeld observed § 87(2)(b) writing down the names of the officers. Sgt. Rozenfeld denied reaching for his gun holster or pepper spray while in conversation with § 87(2)(b) (BR 18).

Although PO Harris recalled Sgt. Rozenfeld asking § 87(2)(b) why he did not want officers to enter the apartment and whether he had something to hide, PO Harris did not observe Sgt. Rozenfeld reach towards his gun's holster or pepper spray (BR 09).

PO Pineda could not recall whether he observed § 87(2)(b) ask Sgt. Rozenfeld for his badge number or whether he observed Sgt. Rozenfeld reach for his pepper spray or gun holster (BR 10). PO Ruf provided testimony that was consistent with PO Pineda's account of the incident (BR 19).

At 33:39 of the file embedded in IA 131, Sgt. Rozenfeld states, "Sir this is getting a little ridiculous. We came here because we got called in that your mother is in grave danger. She cannot take care of herself." When § 87(2)(b) asks whether it looks like § 87(2)(b) is in grave danger, Sgt. Rozenfeld states, "I have to go inside and take a look. If there's nothing to hide, then let me go take a look and I'll be on my way." The height at which the body worn cameras are positioned did not allow existing video footage to determine whether Sgt. Rozenfeld reached towards his gun or his pepper spray and none of cameras captured the entirety of the conclusion of the incident or any time during which § 87(2)(b) request a badge number (BR 04 and BR 11).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations C and E** be closed as **Unsubstantiated**.

Allegation D - Abuse of Authority: Sergeant Jason Rozenfeld searched § 87(2)(b) in Queens.

It is undisputed that § 87(2)(b) provided consent for Sgt. Rozenfeld, PO Harris, PO Ruf, and PO Pineda for the officers to enter her apartment and perform a walkthrough.

§ 87(2)(b) testified that she owned § 87(2)(b) and resided in the 1st floor apartment. When § 87(2)(b) became aware of PO Harris' and PO Pineda's, she was willing to speak with them and did so at the entrance to her apartment. § 87(2)(b) believed the officers were present to make sure she was okay, at which time she assured them that everything was fine. At the time, PO Harris and PO Pineda stood in the hallway near the staircase closest to her apartment entrance. The officers also wanted to look inside of her refrigerator. § 87(2)(b) did not provide permission for officers to enter her apartment until after the arrival of Sgt. Rozenfeld and PO Ruf. Once the officers entered the apartment, § 87(2)(b) remained by the doorway. An officer looked in the refrigerator and all of the officers left shortly thereafter. § 87(2)(b) stated that she did not want to give them permission to enter, however they continued to ask repeatedly and an officer, § 87(2)(b) could not recall which one, stated that she had to grant them permission (BR 16).

§ 87(2)(b) testified that Sgt. Rozenfeld asked § 87(2)(b) whether she was okay, to which she confirmed that she was, but responded that she was annoyed and wanted to return to bed. Sgt. Rozenfeld repeatedly asked to examine the premises, although § 87(2)(b) told him no and asked if she could return to her bed. § 87(2)(b) ultimately provided consent for officers to enter the apartment after § 87(2)(b) insisted that § 87(2)(b) and § 87(2)(b) cooperate and allow the officers to do what they came to do so that they could leave (BR 06).

§ 87(2)(b) testified that upon arriving at the § 87(2)(b) residence, she observed that § 87(2)(b) appeared to be angry and nervous. Officers explained to § 87(2)(b) that they needed to enter § 87(2)(b)'s apartment to talk to her and take a look at her. § 87(2)(b) who appeared upset, refused to give the officer's permission to enter the apartment, however after § 87(2)(b) spoke with him, he verbally consented and allowed the officers to enter, at which time they briefly walked around, checked the kitchen, and opened the refrigerator (BR 17).

Sgt. Rozenfeld testified that either § 87(2)(b) or § 87(2)(b) provided consent for the officers to enter the apartment. Sgt. Rozenfeld described § 87(2)(b) as very old and frail, but noted that she seemed okay. Once consent was obtained, all four officers entered the apartment. The officers walked through it and looked around, but never opened any doors. Sgt. Rozenfeld opened the refrigerator, at which time he observed food in it. Sgt. Rozenfeld estimated that he was in § 87(2)(b)'s apartment for two to three minutes (BR 18).

PO Harris, PO Pineda, and PO Ruf provided testimony that was consistent with Sgt. Rozenfeld's account of the incident, with the exception that they all recalled that § 87(2)(b) provided consent to enter the apartment (BR 09, BR 10, BR 19).

Between 29:15 and 34:00 of the file embedded in IA 131, video evidence depicts Sgt. Rozenfeld explaining the presence of the officers and interviewing § 87(2)(b). During this time frame, Sgt. Rozenfeld asks three times, whether he can take a look at how § 87(2)(b) lives and verify whether she has food in her refrigerator, and once, whether she would like to go to the hospital. After Sgt. Rozenfeld asks the second time, § 87(2)(b) informs him that there is not much to look at, the apartment is clean, and everything is fine. § 87(2)(b) enters the apartment to intervene and asks § 87(2)(b) whether the officers can enter as she reassures § 87(2)(b). § 87(2)(b) provides consent at 33:57 (BR 04 and BR 11).

An officer may enter a home when a person with "ostensible authority" consents freely and voluntarily, People v. Vizcaino, 38 Misc. 3d 1227(A) (2013) (BR 22). Officers entering a residence must possess a warrant. Exceptions to this rule include situations including consent, an emergency, hot pursuit, or exigent circumstances, People v. Lewis, 94 A.D.2d 44 (1983) (BR 23).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Exonerated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 27).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 28).
- PO Harris has been a member of service for 11 years and has been a subject in two CCRB complaints and four allegations, none of which were substantiated § 87(2)(g)
- PO Pineda has been a member of service for one year and this is the first CCRB complaint to which he has been a subject (BR 30).
- PO Ruf has been a member of service for 13 years and this is the first CCRB complaint to which he has been a subject (BR 31).
- Sgt. Rozenfeld has been a member of service for 11 years and has been a subject in three CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- As of April 12, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR 34).

Squad No.: **6**

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date